

25STCP01190 25STCP01190

County: los-angeles

Division: Civil Law and Motion

Department: 732

Hearing date: 2026-07-13

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Case Number: 25STCP01190 Hearing Date: July 13, 2026 Dept: 732

Marilyn Nakad v. Fire Insurance Exchange.

Monday, July 13, 2026

CASE NUMBER: 25STCP01990

OPPOSED

Respondent Fire Insurance Exchange's Motion to Tax Costs

Facts: This is a petition to confirm an arbitration appraisal award in the insurance context. Petitioner Marilyn Nakad (Petitioner) seeks confirmation and judgment on an appraisal award of losses at issue in an insurance dispute.

Procedural History: Petitioner filed the present petition to confirm arbitration award on May 29, 2025.

This court on September 17, 2025, granted Petitioner's petition to confirm arbitration award.

Petitioner filed a memorandum of costs seeking \$804.20 in costs.

Respondent filed the present motion to tax costs on October 14, 2025.

Petitioner filed an opposition on June 26, 2026.

Analysis:

MOTION TO TAX COSTS

"Any notice of motion to strike or to tax costs must be served and filed 15 days after service of the cost memorandum. If the cost memorandum was served by mail, the period is extended as provided in Code of Civil Procedure section 1013. If the cost memorandum was served electronically, the period is extended as provided in Code of Civil Procedure section 1010.6(a)(4)." (California Rules of Court ("CRC") Rule 3.1700, subd. (b)(1).)

"Code of Civil Procedure section 1032, subdivision (b) [], guarantees prevailing parties in civil litigation awards of the costs expended in the litigation: 'Except as otherwise expressly provided by statute, a prevailing party is entitled as a matter of right to recover costs in any action or proceeding.'" (Williams v. Chino Valley Independent Fire Dist. ("Williams") (2015) 61 Cal.4th 97, 100.).

"If the items on a verified cost bill appear proper charges, they are prima facie evidence that the costs, expenses and services therein listed were necessarily incurred." (Rappenecker v. Sea-Land Service, Inc. (1979) 93 Cal.App.3d 256, 266.) Although individual cost items are ordinarily challenged by a motion to tax costs, no cost-item is effectively put in issue by "mere statements" claiming them to be unreasonable. (Ibid.) However, where "it cannot be determined from the face of the cost bill whether the items are proper," "the mere filing of a motion to tax costs may be a 'proper objection' to an item." (Nelson v. Anderson (1999) 72 Cal.App.4th 111, 131, 132.)

Respondent Fire Insurance Exchange ("Respondent") moves to tax a costs memorandum filed by Petitioner Marilyn Nakad ("Petitioner"), seeking \$804.20, in filing and service of process fees, on the grounds that Petitioner is not the prevailing party in this matter, and further that the memorandum of costs includes no itemized costs bill. (Motion at pp. 4–6.)

Contra Respondent's motion, Petitioner is the prevailing party here. Respondent opposed the petition on the grounds that it sought entry of judgment requiring an immediate payment of a damages award, rather than mere confirmation of the appraisers' calculation of losses. (Motion at pp. 4–5.) But as the court ruled in granting the petition, "The petition does not seek entry of this payment award, but rather an order confirming the appraisal award, and an entry of judgment pursuant to its terms." (9/17/2025 Order.) Plaintiff thus obtained the relief requested and is the prevailing party under Code of Civil Procedure § 1032 for situations in which a party has obtained "other than monetary relief." (Code Civ. Proc. § 1032, subd. (4).)

Respondent's argument with respect to the amount of costs and how they are supported, however, is well-taken. Although no itemization is necessarily required when costs are sought, Respondent persuasively notes that at least the filing fees are likely to include expenses in relation to an ex parte application filed by Petitioner on July 30, 2025, which sought continuance of the hearing on the petition to permit the attachment of omitted records. (7/30/2025 Anapol Decl. ¶ 6.) Costs associated with this application are properly taxed, as the ex parte application was not reasonably necessary for the conduct of this litigation.

Petitioner in opposition does not supply any evidence upon which the filing fees associated with the ex parte application may be differentiated from the others. Petitioner rather files only a memorandum stating that the costs were incurred for filing various documents, including the ex parte application. (Opposition at pp. 3–4.)

The costs sought with respect to filing fees are, in the absence of documentation separating out compensable from non-compensable expenses, reduced from \$645.20 to \$435, thereby permitting Petitioner to obtain compensation for the first appearance filing fee in any unlimited civil case, per the schedule of fees promulgated by Los Angeles Superior Court. No similar reduction is appropriate for the \$159 sought for service of process, as there is no indication that service of process occurred other than with respect to the summons on the petition.

Accordingly, the motion to tax costs is GRANTED in part, and the costs award sought by Petitioner is reduced by \$210.20 from \$804.20 to \$594.00.

County of Los Angeles

Department 732

MARILYN NAKAD,

Petitioner,

v.

Fire insurance exchange.,

Respondent.

Case No.: 25STCP01990

Hearing Date: July 13, 2026

[TENTATIVE] RULING RE:

Respondent Fire Insurance Exchange's Motion to Tax Costs

Respondent Fire Insurance Exchange's Motion to Tax Costs is GRANTED in part, and the costs award sought by Petitioner is reduced by \$210.20 from \$804.20 to \$594.00.

Respondent to provide notice.

Dated: July 13, 2026

Hon. Richard S. Kemalyan

Judge of the Superior Court